

2020 C L C 836

[Lahore (Multan Bench)]

Before Jawad Hassan, J

Mst. FATIMA FARYAD and others----Petitioners

Versus

GOVERNMENT OF PUNJAB and others----Respondents

Writ Petition No.2956 of 2020, decided on 25th February, 2020.

Constitution of Pakistan---

---Art. 199---Notification No. DS(B)Laptop4thphase/2017---Constitutional petition---"Chief Minister's Laptop Scheme"---Sovereignty, doctrine of---Scope---Petitioners, through constitutional petitions, sought direction to the authorities to issue them the laptops under "Chief Minister's Laptop Scheme"---Validity---Held, Government, under the doctrine of Sovereignty, was bound to adhere to its commitments---Commitments made on behalf of the Government should neither be lightly disregarded nor deliberately ignored---Orderly development of a civilized society required that citizens should be entitled to place implicit faith and confidence on representations which were made by or on behalf of the governmental authorities---Importance of this underlined the sustained thrust towards the industrialization of the country in which both the nationals of Pakistan as well as nationals of foreign countries should have complete confidence that official commitments would be duly honoured and acted upon in letter and spirit---Authorities had offered that if the petitioners approached its Focal Person along with their relevant documents, the matter would be decided in accordance with the policy/criteria---Petitioners were directed by the High Court to appear before the Focal Person and the authorities were directed to deliver laptops to the petitioners, if found eligible, as per policy/criteria---Constitutional petition was disposed of accordingly.

Dewan Salman Fibber Ltd. and others v. Federation of Pakistan, through Secretary, M/o Finance and others 2015 PTD 2304 foll.

National Bank of Pakistan v. Iftikhar Rasool Anjum and others 2017 PLC (C.S.) 453 and Bahadur Khan and others v. Federation of Pakistan through Secretary M/o Finance, Islamabad and others 2017 SCMR 2066 ref.

Rao Walli Ullah for Petitioner.

Mehr Muhammad Ilyas Wasli, Muhammad Imran Ansari and Mehar Muhammad Riaz for Petitioners in the connected Writ Petitions.

Mian Azhar Saleem Kamlana, Assistant Advocate-General.

Muhammad Ali Siddiqui with Ilyas Ali Siddiqui, Focal Person, BISE, Multan.

ORDER

JAWAD HASSAN, J.----Through this single order, I intend to decide this writ Petition along with the connected W.Ps. Nos.2536, 2586, 2773 and 2930 of 2020, as same question i.e. issuance of laptop by the Respondents in favour of the Petitioners, is involved.

2. The Petitioners, who have passed the matriculation exams from the Respondent-BISE, Multan in the years 2015, 2016 and 2017 with 90% and 91% marks, through these writ Petitions under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution") are seeking directions to the Respondents-Authorities to issue them the Laptops under Chief Minister's Laptop Scheme.

3. Learned counsel for the Petitioners states that the Petitioners are fulfilling the criteria and there is clear cut policy of the Government in this regard, therefore, they are entitled for Laptops.

4. The Respondent-Ilyas Siddiqui, Focal Person, BISE, Multan, appeared on Court's call and stated that the Government of the Punjab issued the criteria for provision of Laptops under 4th Phase (2016-17 to 2017-18), therefore, the students who obtained 90% Marks in the years 2015 and 2016 and 91% Marks in the year 2017, will receive the Laptops. The criteria vide Notification No.DS(B)Laptop4thphase/2017, Government of the Punjab, Higher Education Department, Lahore, for Matriculate students is as follows:

viii. Matriculate students who secured 90% or above marks in matriculation examination-2015 (Annual) in any of the 09 (nine) Boards of Intermediate and Secondary Education in the Province.

ix. Matriculate students who secured 91% or above marks in matriculation examination-2017 (Annual) in any of the nine Boards of Intermediate and Secondary Education in the Province.

Following students will not be eligible for award of laptops under this scheme.

i. Students who have earlier received laptops under any of the laptop distribution scheme of the Government/Institutes.

ii. Students who are doing any kind of job (public as well as private).

iii. Foreign nationals except students from Azad Jammu and Kashmir and Indian Occupied Kashmir.

5. The aforesaid criteria has been issued by the Higher Education Department, Government of the Punjab, Lahore and under the Doctrine of Sovereignty they are bound to adhere to their commitment in the light of dictum laid down in the case of *Dewan Salman Fibber Ltd. and others v. Federation of Pakistan*, through Secretary, M/o Finance and others (2015 PTD 2304) whereby this Court while laying emphasis on the impotence of the Government adhering to severing commitments made by it, whether in the form of the statutory orders or notification issued by it or in the shape of policies announced by it held that "the commitments made on behalf of the Government of the Islamic Republic of Pakistan should neither be lightly disregarded nor deliberately ignored. The orderly development of a civilized society requires that citizens should be entitled to place implicit faith and confidence on representations which

are made by or on behalf of the duly constituted governmental authorities. The importance of this underlies the sustained thrust towards the industrialization of the country in which both the nationals of Pakistan as well as nationals of foreign countries should have complete confidence that official commitments will be duly honored and acted upon in letter and spirit." This view has further been fortified by a learned Division Bench of this Court in the judgment report as National Bank of Pakistan v. Iftikhar Rasool Anjum and others [2017 PLC (C.S.) 453] which has been upheld by the Hon'ble Supreme Court of Pakistan in the case of Bahadur Khan and others v. Federation of Pakistan through Secretary M/o Finance, Islamabad and others (2017 SCMR 2066).

6. At this stage, learned counsel for the Respondent-BISE states that if the Petitioners approach the Respondent-Ilyas Siddiqui, Focal Person, BISE, Multan along with their relevant documents and photographs, the matter would be decided in accordance with the aforesaid policy/criteria. Learned counsel for the Petitioner is satisfied to the same.

7. In view of above statement, the Petitioners of all these writ Petitions shall appear before the Respondent-Ilyas Siddiqui, Focal Person, BISE, Multan, on 07.03.2020, who shall collect their documents, verify the same and complete the online process within seven days. Thereafter, the Respondent No.2/Secretary Higher Education Department, Government of the Punjab, Lahore shall give online access to the Focal Person as per rules and regulations within next seven days, so that the Laptop should be delivered to the Petitioners, if they are found eligible for the same, as per Policy/Criteria.

8. Disposed of.

SA/F-9/L Order accordingly.